

CV-25-004133 MIDLAND CREDIT MANAGEMENT INC vs FIGUEROA, MONICA – Defendant’s Motion to be Relieved as Counsel – DENIED, without prejudice.

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: Defendant’s Counsel Alexander Penley of Cordoba Legal Group fails to check the required boxes on his supporting declaration, Form MC-52, affirming that counsel has confirmed his client’s address within the last 30 days or has been unable to confirm the client’s address. Counsel also failed to check whether trial has been set in this matter, and if so, the date for which trial has been set. CA ST CIVIL RULES Rule 3.1362(d). The 30-day confirmation requirement is substantive, not merely technical and places an affirmative investigative obligation on counsel before filing the motion. Accordingly, the motion is denied without prejudice.

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